



Delaware County Commissioners Meeting May 18th 2020

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=IBKRTXk3IUA
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Delaware County Commissioners Virtual Meeting Summary

Meeting Date: Monday, May 18, 2020

Meeting Time: 9:02 AM

1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the regular virtual meeting of the Delaware County Commissioners to order at [00:00:12](#). Public questions/comments were directed to commissioners@codeaware.in.us.
- **Attendance:**
 - **Present:** Mr. King, Ms. Regan, Mr. Henry (all commissioners present; roll call conducted by Steve at [00:00:38](#)).
 - **Presiding Officer:** Not explicitly designated by title, but led by the commissioners (with Mr. King leading initial proceedings).

2. Preliminary & Procedural Business

- **Ceremonial Openings:** None noted.
 - **Approval of Minutes:**
 - [00:03:11](#) Approval of minutes from the March 16, 2020 meeting. Passed via roll call.
 - [00:03:39](#) Approval of minutes for special meetings held on March 20, March 23, March 27, April 3, April 7, April 10, April 24, May 1, and May 8, 2020 (declarations discussions). Passed via roll call.
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3. Substantive Business & Board Action

- [00:01:13](#) **Tabled Business / Agreement Amendment**
 - **Item Identifier & Title:** Ordinance 2020-00 (Rich Fund agreement/contract).
 - **Sponsor / Presenter:** Board / Staff.
 - **Deliberation Summary:** Discussed removing the item from the table. Staff noted that timelines and the entire last paragraph requiring a \$1,500 advance payment had been deleted entirely.
 - **Action & Vote Disposition:** Motion to remove from the table passed via roll call ([00:02:00](#)). Motion to approve the agreement passed via roll call ([00:02:54](#)).
- [00:04:25](#) **COVID-19 & Health Department Updates**
 - **Sponsor / Presenter:** Dr. Wilkins (Health Officer) & Jamie.
 - **Deliberation Summary:**
 - Reported an increase in cases from 251 (Friday) to 292 cases, noting it is the single biggest jump, largely nursing home-related. Total deaths reached 23.
 - Discussed drafting a formal letter to the State Health Department requesting the reallocation of federal funding toward direct, proactive support and comprehensive testing for nursing homes.
 - Noted four nursing homes currently have positive cases. Discussed challenges with state strike teams testing only symptomatic individuals rather than entire facilities at once, and issues with staff cross-contamination between COVID-positive and clean wings.
 - Jason (Emergency Management) reported that the local PPE stockpile is nearly complete and a policy/resolution will be brought forward regarding a buy-in mechanism for local agencies to resupply the county [00:12:37](#).
- [00:16:00](#) **Emergency Declaration 2020-11 (County Building Access & Face Coverings)**
 - **Item Identifier & Title:** Emergency Declaration 2020-11.
 - **Sponsor / Presenter:** Board / Counsel.
 - **Deliberation Summary:**

- Establishes rules commencing May 26, 2020: Limits public access to no more than 25 members of the public per floor in the County Building, and 25 people in the Justice Center (excluding staff, lawyers, and litigants). Overflow must wait outside with 6-foot social distancing.
 - **Mandatory Mask Policy:** Requires all members of the public conducting business in county facilities to maintain 6-foot social distancing and wear a face mask/covering over the mouth and nose. Refusal to wear a mask results in denied entry or immediate removal (enforced by security bailiffs/former law enforcement at the doors).
 - Counsel noted the declaration expires June 1st (the next regular meeting) for review [00:23:43](#).
 - **Action & Vote Disposition:** Approved via roll call ([00:23:33](#)).
- [00:24:01](#) **Retention of Independent Counsel (Meeks Cockrell)**
 - **Item Identifier & Title:** Provisions for the Retention of Meeks Cockrell.
 - **Sponsor / Presenter:** John (Attorney).
 - **Deliberation Summary:** Following a rate increase adopted by the Delaware County Regional Wastewater District and petitions filed by Daleville residents, John's office declared a conflict of interest. Retention of independent counsel Meeks Cockrell was recommended to review the matter (noting Cockrell's prior experience with rate appeal matters in Jay County).
 - **Action & Vote Disposition:** Approved via roll call ([00:26:53](#)).
- [00:27:08](#) **Industrial Park Project Easement**
 - **Item Identifier & Title:** Industrial Park Project Easement (Ordinance / Resolution 26-3).
 - **Sponsor / Presenter:** Board / Staff.
 - **Deliberation Summary:** Commissioners granting an easement to themselves for a trail project constructing around the new jail facility (connecting toward Progress Road, Ivy Tech, and Magna). Commissioner King noted broader future phases with the Redevelopment Commission to connect the county trail network.
 - **Action & Vote Disposition:** Approved via roll call ([00:30:00](#)).
- [00:30:13](#) **Ivy Tech Easement Termination**
 - **Item Identifier & Title:** Ivy Tech Easement Termination.
 - **Sponsor / Presenter:** Staff.
 - **Deliberation Summary:** Formalizes the termination of a temporary construction easement granted by Ivy Tech during past road expansions, clearing title issues ahead of a property transfer.
 - **Action & Vote Disposition:** Approved via roll call ([00:31:25](#)).
- [00:31:38](#) **CREAD Board Recommendations (Inox Market Service Project)**
 - **Item Identifier & Title:** CREAD Board Recommendations / Inox Market Service North American Headquarters.

- **Sponsor / Presenter:** Brad Bookout (Economic Development) & Commissioner King.
- **Deliberation Summary:**
 - Announced that Inox Market Service (an Italian stainless steel processor for appliances/elevators) chose Delaware County for its North American headquarters, investing \$15 million and creating over 100 new jobs.
 - Noted zero local tax abatement, zero local TIF funding pledged, and zero local EDIT funding pledged.
 - Funded via \$610,000 from state-allocated CREAD (greed/CREAD) money paid out annually upon hitting milestones.
 - Commissioners highlighted personal engagement originating from a 2019 Washington D.C. summit. An independent firm was hired to review facility chemicals to ensure environmental safety.
- **Action & Vote Disposition:** Approved via roll call (00:42:52).
- **00:43:20 Ordinance No. 2020-003: Public Records Requests**
 - **Item Identifier & Title:** Ordinance 2020-003 (Second Reading) <U+2014> Public Records Requests.
 - **Sponsor / Presenter:** Legal Counsel.
 - **Deliberation Summary:** Standardizes public records requests coming into county offices, modeled after the prosecutor's office policy and vetted by the Association of Indiana Counties.
 - **Action & Vote Disposition:** Approved via roll call (00:44:35).
- **00:44:48 Resolution No. 2020-013: Daleville Redevelopment Plan Amendment**
 - **Item Identifier & Title:** Resolution 2020-013 <U+2014> Declaratory Resolution & Economic Development Plan Amendment (Town of Daleville).
 - **Sponsor / Presenter:** Brad Bookout.
 - **Deliberation Summary:** Ratifies an amendment by the Metropolitan Planning Commission for the town of Daleville covering three projects (Force project, Daleville Town Hall, and BHI project), following unanimous approval by the Redevelopment Commission.
 - **Action & Vote Disposition:** Approved via roll call (00:46:16).
- **00:46:29 Resolution No. 2020-014: Voluntary County Furlough Program Extension**
 - **Item Identifier & Title:** Resolution 2020-014 <U+2014> Amendment to Create Voluntary County Furlough Program.
 - **Sponsor / Presenter:** Commissioners / Counsel.
 - **Deliberation Summary:** Extends the voluntary county furlough program (under which about 20 individuals previously signed up), allowing participation from May 28, 2020 through August 5, 2020 under the same terms (unemployment collection and benefit continuation without county payroll pay). Council provided a clarifying letter confirming the program is strictly a furlough program.
 - **Action & Vote Disposition:** Approved via roll call (00:49:49).

- **[00:41:41 / 00:50:41] Payment of Claims**
 - **Item Identifier & Title:** Payment of Claims.
 - **Deliberation Summary:** Regular claims totaled \$3,410,716.36; COVID pandemic-related claims totaled \$6,025,878.87; combined total of \$9,436,595.23.
 - **Action & Vote Disposition:** Approved via roll call (00:51:10).
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4. Open Public Comment / Citizen Forum

(Note: No dedicated public comment session from floor residents was conducted during this virtual meeting; public input was restricted to email submissions or specific agenda matters.)

5. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - Weights and Measures report attached to the packet; staff assisted in the county building during downtime 00:50:01.
 - Highway department operating on a 4-day work week, with paving projects beginning 00:51:36.
 - **Scam Warning:** 00:52:15 Emergency Management reported scam calls targeting local citizens by individuals falsely claiming to represent the Health Department for COVID-19 contact tracing; law enforcement and Facebook notices have been issued.
 - **Adjournment:**
 - 00:53:13 Motion to recess/adjourn made and seconded. Approved via roll call (00:53:22).
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